

		OSC re dismissal (default prove-up) is scheduled for 10/8/2026 at 1:30 PM. If default papers have not been filed, plaintiff's counsel is ORDERED to file a status report 5 days prior to the hearing. Trial scheduled for 1/29/2027 is VACATED. Clerk to give notice.
10	Nichols vs. Sazegar 30-2026- 01555761-CU- OR-CJC	Motion to Expunge Lis Pendens Defendant Maria Olmos's motion to expunge the lis pendens recorded against real property located at 906 W. Alton Avenue, Santa Ana, CA ("Alton Property") is DENIED. Plaintiff Bond Nichols's Request for Judicial Notice (RJN) of Exhibits 1-10 is GRANTED. "The only substantive grounds upon which a lis pendens can be expunged is if the underlying action does not contain a real property claim (§ 405.31) or the real property claim lacks probable validity (§ 405.32)." (<i>J&A Mash & Barrel, LLC v. Superior Ct. of Fresno Cnty.</i> (2022) 74 Cal.App.5th 1, 22 (<i>J&A</i>); Code Civ. Proc., §§ 405.31, 405.32) " 'Probable validity,' with respect to a real property claim, means that it is more likely than not that the claimant will obtain a judgment against the defendant on the claim." (Code Civ. Proc., § 405.3.) "[S]ection 405.30 explicitly places the burden of proving the probable validity of the real property claim on [] the claimant." (<i>J&A, supra</i>, 74 Cal.App.5th at p. 33.) Here, the Complaint alleges a single cause of action for Fraudulent Transfer pursuant to Civil Code section 3439, et seq. A fraudulent conveyance action seeking avoidance of a transfer affects title to, or the right to possession of real property and is therefore a real property claim for the purposes of the lis pendens statutes. (<i>Kirkeby v. Sup. Ct.</i> (2004) 33 Cal.4th 642, 649.) Plaintiff has also sufficiently established the probable validity of his claim based on the evidence showing the creation of Pollywood Development, LLC ("Pollywood") after Plaintiff filed a complaint against defendant David Sazegar in May 2020, acquisition of the Alton Property in the name of Sazegar's entity Pollywood, the subsequent transfer less than a year later from Pollywood to Olmos, and the recordation of the Interspousal Grant Deed all after Plaintiff initiated the 2020 Action against Sazegar. Further, the acquiring of a \$750,000 loan from Citadel Servicing Corporation dba Acra Lending secured against

		the Alton Property just about two weeks before the 2020 Action was set to begin trial suggests Sazegar and Olmos engaged in gamesmanship to shield the Alton Property from collection. Additionally, Olmos's contention the transfer of the Alton Property to her by Pollywood was to satisfy two promissory notes with a combined principal of \$165,000 is contradicted by the Grant Deed's express representation the transfer was a "bonafide gift" and Pollywood received "nothing." Plaintiff's request for attorney fees against Defendant Maria Olmos in the amount of \$1,740 is GRANTED. (Code Civ. Proc., § 405.38.) Olmos is ORDERED to pay the attorney fees within 30 days. Plaintiff to give notice.
11	Grigsby vs. Steele Canyon Golf Course Corp. 30-2024-01435496-CU-PO-CJC	Demurrer to Third Amended Complaint The Demurrer to Plaintiff's Third Amended Complaint (TAC) by Defendants Steele Canyon Golf Club Corporation d.b.a. Dove Canyon Golf Club and Pacific Golf Management; SJS Tomorrow, LLC; SJD, LLC; Dove Canyon Golf Club, LLC; Lawrence Taylor; Colin Radchenko; Chloe Kim; John Glasoe; and Gabe Ramos is CONTINUED to 8/21/2026. Plaintiff filed and served an untimely opposition to the motion on 7/6/2026, only four days before the hearing. The continuance will permit moving Defendants to file a reply per Code. Clerk to give notice.
12	Southern California Edison Company vs. Powell Constructors Inc. 30-2025-01537140-CU-PO-CJC	Demurrer to Complaint The Demurrer to Complaint by Defendant State of California by and through Department of Transportation is OVERRULED. At the pleading stage, the court must liberally construe the complaint, drawing all reasonable inferences in favor of plaintiffs' asserted claims. (<i>Liapes v. Facebook, Inc.</i> (2023) 95 Cal.App.5th 910, 919.) Under this standard, all causes of action are adequately pled. On the second cause of action, plaintiff has adequately pled defendant's liability for the alleged conduct of its contractor, defendant Powell Constructors Inc., under Government Code section 815.4 and Public Utilities Code section 7952.